

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 10, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Luna moved to approve Consent Agenda items, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 27, 2014. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Luna. Pursuant to inquiry regarding a voucher payable to EQ Sound for wireless microphones used for a Civic Center production and whether there is a local company that can provide the service, Mayor Kaysen advised he would contact applicable staff and provide follow-up information. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Minglemill, Inc. d/b/a Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming (License currently held by Stillwater, Inc. d/b/a Mingles, 1618 Stillwater Avenue, Cheyenne, Wyoming). There being no comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing. The item was referred to Finance Committee.

ORDINANCE - Amending the Cheyenne Unified Development (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as election sign amendments from the 2013 annual review (postponed from Jan. 27, 2014). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Mr. Shanor moved to amend by substitute dated 02-04-14, seconded by Mr. Allen. (City Clerk note - title of substitute ordinance: An Ordinance, pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code ("UDC"), amending Section 6.5.5.b. to add exemptions from the sign permit requirements of Article 6.5 of the UDC relating to signs.) Upon inquiry, Dan White, City Attorney, clarified the purpose of the amendment is to exempt from the sign regulations of the UDC

those types of signs that are both easily placed and removed from the ground, without structures, construction or specialized equipment, and which relate to candidates, issues, propositions or other matters to be voted upon by the electors of the city, or which relate to philosophical, religious, political, charitable or other similar noncommercial messages. M. Lee Hasenauer, Laramie County Commissioner, commented in support of addressing the constitutional issue and spoke in favor of the amendment. Upon inquiry for clarification, Mr. White confirmed the effect of the amendment would be that political and ideological signs would have no restriction on the amount of time they can be posted, or the size or number of signs that can be placed on a lot. Discussion topics included: Concerns with having unrestricted signs, such as sign size/total size; objectives of the sign ordinance to maintain and enhance visual qualities and aesthetics to the community and promote pedestrian and vehicle safety by minimizing distractions, and addressing regulations, if needed, in the future. Motion to amend carried. Voting “yes” -- Mr. Allen, Mr. Brown, Mr. Luna, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting “no” -- Ms. Broyles, Mr. Cook and Dr. Rinne. Comments followed regarding concerns that had been raised affiliated with non-regulation, including sign size, number and setbacks, and rectifying the constitutional issue through the proposed amended ordinance. Ms. Broyles moved to postpone for two weeks. Motion died due to the lack of a second. Main motion on third and final reading, as amended by substitute, carried. Voting “yes” -- Mr. Allen, Mr. Brown, Mr. Luna, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting “no” -- Ms. Broyles, Mr. Cook and Dr. Rinne. (#4017)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code changing the zoning classification from LI Light Industrial to MUR Mixed-Use Residential Emphasis for Lot 8, Block 223, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Dillon Avenue and W. 21st Street). Dan Edeen, Phoenix Builders, representing the property owners, briefly reviewed the purpose of the zone change, which is to allow the owners to build a new residence on the site that will be up to codes. Jan Nelson-Schroll spoke in support of the area being zoned residential and not light industrial, and expressed concerns that there is nothing in place through the City to help people restore older, antique homes in lieu of tearing them down and rebuilding. Boyd Wiggam, Wyoming Liberty Group, commented in support of the zone change, expressing that the property owner’s situation reflects a broader, wide-spread problem with zoning classifications vs. uses on the west side of the City that should be addressed. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Cook. Following brief comment, motion carried. Voting “yes” -- all members of the governing body. (#4018)

ORDINANCE - Vacating a portion of 16 foot alley in Block 353, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. 18th Street and Thomes Avenue). Mr. Shanor moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body. (#4019)

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), to adopt amendments to increase the maximum Administrative Adjustment from 10% to 50% for infill and redevelopment as initiated from the 2013 annual review. Mr. Shanor moved to approve on second reading, seconded by Mr. Cook. Mr. Shanor moved to amend by substitute ordinance, seconded by Mr. Allen. It was advised the purpose of the substitute is to include that an explanation to the

applicant and the public will be provided if the administrative adjustment is approved, and to include a sunset provision to determine effectiveness of the ordinance after one year. Discussion topics included: Decision of the director relative to an applicant appeal process; consideration that a notification process to residents in the area involved with the application be included; purpose and benefit of including a sunset clause; amending the current administrative adjustment percentage to assisting in spurring re-development; annual UDC review requirement, and responsibility of notifying City Council members when the ordinance will sunset. Upon query to City Council members by Mayor Kaysen to allow him to voice an observation regarding the sunset clause, and there being no objection raised, Mayor Kaysen noted that the annual UDC review process may take care of the purpose of including a sunset clause. Mayor Kaysen advised that administration staff will provide notification to the governing body when the ordinance would “sunset” if the clause is included in the final ordinance. Motion to amend by substitute carried. Voting “yes” -- all members of the governing body. Mr. Allen, seconded by Dr. Rinne, moved to amend the substitute ordinance as follows: Strike the words “is final and” in Section 6 under Specific Procedures so the last sentence would instead read “The decision of the Director shall be given to the applicant in writing, and a copy shall be made available for public review.”; change numbering of the next section from Section 6 to Section 7, and in the newly re-numbered Section 7 insert the word “hereof” at the end of the first sentence and strike the last sentence in its entirety. It was verified that the proposed changes to Section 7 would result in the section reading as follows: “That this ordinance shall be in full force and effect upon its approval and publication for a period of one year hereof.” It was noted that the amendment is to incorporate some suggestions offered by the City Attorney. Motion to amend the substitute carried. Voting “yes” -- all members of the governing body. Discussion followed on possible future amendment that may be proposed at the next Public Services Committee meeting with regard to a neighborhood notification requirement; purpose of the ordinance, which is to assist with re-development of existing properties; sunset clause to allow for review by the governing body, and notification requirements (signage) affiliated with the site plan process. Main motion to approve as twice amended carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Amending various sections of the Cheyenne Unified Development Code (UDC), to add an Urban Loft Lot Type (NB3) and “Urban Loft Building” definition, allowed as a Use Permitted By Right and Use Permitted after Conditional Discretionary Review in Residential, Mixed Use and Neighborhood Business districts. Mr. Shanor moved to approve on second reading, seconded by Mr. Allen. Comments followed regarding uses permitted by right and after conditional discretionary review, and that an urban loft use is already permitted in a Community Business District (CBD) zone. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB Community Business to MUR Mixed-Use Residential Emphasis for the south 79 feet of Lot 8, Block 311, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 18th Street and Logan Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development

Code, changing the zoning classification from CB Community Business to LI Light Industrial for Lot 1, Block 1, Public Works Addition, Cheyenne, Wyoming (located on the west side of North College Drive) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Transfer Station Upgrade Phase II. Motion (per Consent Agenda) carried. (#5563)

RESOLUTION - Setting aside monies in the 2015 fiscal year budget to be used to implement corrective or emergency measures for structures that are deemed vacant, unsafe, dangerous or otherwise unfit for human occupancy pursuant to the City of Cheyenne Dangerous Building Code. Mr. Shanor recused himself from discussion and voting on the item to avoid the appearance of any potential or perceived conflict of interest, and vacated Council Chambers. Pete Laybourn spoke in support of the resolution, referencing a past ordinance that applied to abandoned residential structures which was no longer in effect due to a sunset expiration clause. Mr. Laybourn expressed concerns with vacant structures and community safety, and voiced support for providing budget funding to assist with code enforcement. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Ms. Broyles. Mr. Brown moved to amend to increase the funding amount to \$25,000, seconded by Ms. Williams. Boyd Wiggam, Wyoming Liberty Group, expressed his understanding that the proposed increase in funding would primarily be used to cover costs of filing liens and litigation if affected properties resulted in transferring private property into public ownership. He requested the initial \$5,000 funding request be kept for use to board up buildings, and that results of re-development and infill projects and initiatives be reviewed for effectiveness before increasing the funding. Upon inquiry, discussion followed regarding the rationale for increasing the funding request from \$5,000 to \$25,000 and potential funding sources. During discussion, Mr. Brown raised a point of order that comments being made did not pertain to wording of the resolution with Mayor Kaysen ruling that comments could continue. Discussion continued and included the following topics: Potential funding sources, including grants; available City Council contingency funds; estimated number of properties containing abandoned or vacant houses/structures that may be involved per Council Ward; code enforcement; upcoming budget process for next fiscal year and concern with the increased funding amount; dangerous buildings as a community health, safety and welfare issue, and status of current budget revenues vs. expenditures. During discussion regarding the number of estimated properties that may be involved, Mr. Allen raised a point of order that comments were not germane to the motion on the floor with Mayor Kaysen concurring and advising that comments should stay on topic. Motion to amend failed. Voting "yes" -- Mr. Allen, Ms. Broyles and Ms. Williams. Voting "no" -- Mr. Brown, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Ms. Broyles moved to amend by adding the amount of \$2,040.49 from Council Ward III contingency funds to the \$5,000 funding request, seconded by Ms. Williams. Dr. Rinne raised a point of information regarding the process that has been utilized by Council members on determining approval for use of Council contingency funds per Ward. Mayor Kaysen advised it was his understanding that past practice has been that approval of Council contingency funds are determined by City Council members who represent each Ward. Discussion followed on abstention from voting on use of contingency funds by Council members who do not represent the Ward involved in the motion to amend and affiliated concerns, and history of Council contingency funds per Ward and approval for use. Mayor Kaysen recognized Mr. Laybourn, who provided information on past disbursement of Council Ward I contingency funds through a resolution process, which was the preference of Council Ward I members at that time when he served on City Council. Motion to amend failed. Voting "yes" -- Ms. Broyles and Ms. Williams. Voting "no" -- Mr. Allen, Mr. Brown,

Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Pursuant to comments regarding recouping expenses through a lien process and costs, and upon inquiry, Bruce Wilson, Chief Building Official, reviewed generally the process that is followed relative to notices and orders that are issued to property owners and further actions if non-compliance continues, including boarding up/securing of properties. Upon further inquiry, Mr. Wilson explained the past ordinance, which is no longer in effect, required owners to register abandoned residential buildings and that of all of the properties registered only one was truly abandoned with others involving properties that had gone through foreclosure by mortgage companies. Upon inquiry, Mayor Kaysen stated the cost for abating nuisances is attached to the property owner and sometimes collection efforts are successful and sometimes not. Upon query, Mr. Wilson stated it would cost approximately \$150-\$300 to board up a house, depending on the number of openings. Discussion continued and included banks owning properties that may be abandoned or vacant; identification of properties and lack of communications between various agencies to assist with identification. Main motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Shanor returned to Council Chambers. (#5564)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for the Cheyenne Public Safety Center, a replat of portions of Lots 1 thru 8, and that portion of vacated alley, Block 353, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. 18th Street and Thomes Avenue). Mr. Shanor moved to adopt, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (#5565)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the application of the Board of County Commissioners of Laramie County, Wyoming, to be submitted to the State Loan and Investment Board for the 2013 - 2014 Countywide Consensus Block Grant funding in the amount of \$31,430.00 for the Laramie County Historic Courthouse roof -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the application of the Town of Pine Bluffs, Wyoming, to be submitted to the State Loan and Investment Board for the 2013 - 2014 Countywide Consensus Block Grant funding in the amount of \$16,500.00 for the Pine Bluffs Airport Fence Thrasher Project -- referred to Finance Committee (sponsor -- Mr. Brown).

Professional Services Agreement between the City of Cheyenne, Public Works Department, Transit Division, and Radio Engineering Industries, Inc., to provide Computer Aided Scheduling Software with Mobile Data Terminals (Transit Federal funds). Joe Dougherty, Cheyenne Transit Director, advised the agreement will provide for software to be installed in 19 buses and provided information on areas of improvement that will be realized relative to customer service, route efficiency, trip counts, etc. Mr. Brown moved to adopt, seconded by Mr. Luna. Mr. Brown moved to amend by substitute agreement dated Jan 31, 2014, seconded by Ms. Broyles. It was advised the substitute provides for clarification of insurance provisions. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body. (#6123)

[CA] Contract between the City of Cheyenne and The Hartford for life and supplemental insurance coverage for full-time City employees -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks & Recreation Department, Leisure Services Division, and Kleen-Tech Services, to provide janitorial services for the Youth Activity and Community Center -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne on behalf of the Metropolitan Planning Organization and Fehr & Peers for the Pershing Boulevard Complete Street Plan (Metropolitan Planning Organization Planning Funds) -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for epoxy striping (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Amendment No. 1 to Professional Services Contract No. 5917 between the City of Cheyenne, Metropolitan Planning Organization, and Ayres Associates, Inc. for the Dell Range Corridor Study, Phase II (Federal MPO funds, Federal Highway Safety Grant). Motion (per Consent Agenda) carried (amount not to exceed \$54,760.00). (#5917)

[CA] Amendment No. 1 to Professional Services Contract No. 5912 between the City of Cheyenne, Metropolitan Planning Organization, and Russell + Mills Studio for the Lincolnway Placemaking: Downtown Pedestrian and Urban Design Plan, Phase II (Metropolitan Planning Organization Planning Funds) -- referred to Finance Committee.

[CA] Amendment No. 1 to Professional Services Contract No. 6054 between the City of Cheyenne on behalf of the Metropolitan Planning Organization and AVI Professional Corporation for the Division Avenue Corridor/Wallick Road Design Plan (Metropolitan Planning Organization Planning Funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-12-14 for constructing a wood structure, metal siding building, (pole barn) for the City of Cheyenne, Parks & Recreation Department, Urban Forestry Division (2011-2014 1% Sales Tax & Contractual Maintenance Account Urban Forestry). Motion (per Consent Agenda) carried (accepted bid from DC Construction, Cheyenne, Wyoming, in an amount not to exceed \$81,977.00).

[CA] Consideration of Bid #M-13-14 for a contract between the City of Cheyenne, Public Works Department, and Monument Builders, Inc., of Cheyenne, Wyoming, for the Household Hazardous Waste Facility, Sitework, and Underground Storage Tank Replacement Project (State & Local Grants) -- referred to Finance Committee.

[CA] Consideration of Bid #R-12-14 for furnishing one new mobile command unit for the City of Cheyenne, Police Department (Law Enforcement Grants) -- referred to Finance Committee.

[CA] Consideration to purchase EvidenceOnQ for the Cheyenne Police Department from FileOnQ (Impact Assistance funds) -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held Monday, February 24, 2014 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Ave., Cheyenne, Wyoming, for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, and microbrewery permits) filed with the City Clerk's Office.

Announcement was made that due to the Presidents' Holiday on Monday, February 17, 2014, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, February 18, 2014 at 11:00 a.m. and Public Services Committee will meet Wednesday, February 19, 2014 at Noon.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:49 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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